SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 995 of 2021 (YEAR: 2019)

CORAM: R.F. NARIMAN, NAVIN SINHA

Swiss Ribbons Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Insolvency and Bankruptcy Code, 2016, Constitution of India
Sections:	Section 12A IBC, Section 29A IBC, Article 14

JUDICIAL HEADNOTE & SUMMARY

Upheld constitutional validity of Insolvency and Bankruptcy Code, affirming distinction between financial and operational creditors and primacy of resolution over recovery.

RATIO DECIDENDI

The Court held that: Upheld constitutional validity of Insolvency and Bankruptcy Code, affirming distinction between financial and operational creditors and primacy of resolution over recovery. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Swiss Ribbons Pvt. Ltd. v. Union of India (Civil Appeal No. 995 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Insolvency and Bankruptcy Code, 2016, Constitution of India, particularly Section 12A IBC, Section 29A IBC, Article 14. Upheld constitutional validity of Insolvency and Bankruptcy Code, affirming distinction between financial and operational creditors and primacy of resolution over recovery.

OPERATIVE ORDER

ORDER: Decided